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AS INTRODUCED IN LOK SABHA ON

Bill No. 129 of 1983

THE CONSTITUTION (SIXTY-SECOND AMENDMENT)
BILL, 1983

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BILL

further to amend the Constitution of India.

Be it enacted by Parliament in the Thirty-ninth Year of the Republic of India as follows:—

1. This Act may be called the Constitution (Sixty-second Amendment) Act, 1988.

Short
title.

5 2. In article 326 of the Constitution, for the words "twenty-one years", the words "eighteen years" shall be substituted.

Amend-
ment of
article
326.

STATEMENT OF OBJECTS AND REASONS

Article 326 of the Constitution provides that the elections to the House of the People and to the Legislative Assembly of every State shall be on the basis of adult suffrage, that is to say, a person should not be less than 21 years of age. It has been found that many of the countries have specified 18 years as the voting age. In our country some of the State Governments have adopted 18 years of age for elections to the local authorities. The present-day youth are literate and enlightened and the lowering of the voting age would provide to the unrepresented youth of the country an opportunity to give vent to their feelings and help them become a part of the political process. The present-day youth are very much politically conscious. It is, therefore, proposed to reduce the voting age from 21 years to 18 years.

2. The Bill seeks to achieve the above object.

NEW DELHI;
The 9th December, 1968.

B. SHANKARANAND.

FINANCIAL MEMORANDUM

Clause 2 of the Bill seeks to amend article 326 of the Constitution to reduce the voting age from 21 years to 18 years. It is estimated that as a result of this reduction in voting age, the number of voters will be increased by 47 million. If the Bill is enacted and brought into operation, the electoral rolls have to be revised to include all those persons who are between the age of 18 and 21 years. It is not possible to precisely estimate the expenditure involved in the revision of electoral rolls. On a modest estimate given by the Election Commission, it is estimated that this would come to anywhere between rupees 1 crore and 1.50 crores. Some more expenditure is also likely to be involved in the conduct of elections, in the form of printing of additional ballot papers, the establishment of more number of polling stations, etc. It is not possible to precisely estimate the expenditure that would be incurred on this account.

The Bill, if enacted and brought into operation, would not involve any other expenditure, either recurring or non-recurring.

ANNEXURE

EXTRACT FROM THE CONSTITUTION OF INDIA

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Elections
to the
House of
the Peo-
ple and
to the
Legislative
Assemb-
lies of
States to
be on the
basis of
adult
suffrage.

328. The elections to the House of the People and to the Legislative Assembly of every State shall be on the basis of adult suffrage, that is to say, every person who is a citizen of India and who is not less than twenty-one years of age on such date as may be fixed in that behalf by or under any law made by the appropriate Legislature and is not otherwise disqualified under this Constitution or any law made by the appropriate Legislature on the ground of non-residence, unsoundness of mind, crime or corrupt or illegal practice, shall be entitled to be registered as a voter at any such election.

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furth~~er~~ to amend the Constitution of India.

(*Shri B. Shankaranand, Minister of Law and Justice*)